LEXTRIA RESEARCH
#20 & #21, Astraea research, 4th floor,
MUTBI, Advanced Research Centre,
Manipal - 576104

Engagement Letter – Patent Filing Services

Date: [Date]
To: [Client Name]
[Client Title/Position]
[Client Company Name]
[Client Address Line 1]
[Client Address Line 2]
[City, State, PIN Code]

Subject: Engagement of Lextria Research for Patent Filing Services

Dear [Client Name],
This letter confirms the engagement of **Lextria Research** to assist [Client Name] in the process of filing a patent. The purpose of this letter is to outline the terms and conditions of our engagement for patent application services. We appreciate the opportunity to work with you on this project and are committed to providing comprehensive support throughout the patent filing process.

Introduction

This Engagement Letter sets forth the understanding between Lextria Research and the Client regarding the scope of services, timelines, fees, and other terms related to patent application filing services. By signing this letter, both parties agree to the terms and conditions described herein.

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Scope of Work

Lextria Research will provide the following services as part of the engagement:

• **Patent Application Preparation and Filing**: Drafting, preparation, and filing of the patent application, including the necessary **Provisional Specification (PS)** and/or **Complete Specification (CS)** as required for the invention.

• **Guidance and Documentation Support**: Providing guidance and support throughout the documentation, drafting, and submission stages of the patent application process. This includes advising on required forms, helping to organize technical information, and ensuring that all documentation meets the standards of the Indian Patent Office.

• **Liaison with Patent Office**: Communicating and corresponding with the Indian Patent Office on the Client's behalf, as needed. This may involve responding to formal communications, clarifications, or requests from the patent office during the application process. Lextria Research shall perform the above services with due professionalism and in accordance with applicable laws and regulations governing patent filings in India.

Timeline

Time is of the essence in the patent filing process. Lextria Research will use its best efforts to meet the following timelines for deliverables:

• **Provisional Specification (PS):** Preparation and filing of the Provisional Specification within three (3) days of receiving all necessary information and

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inputs from the Client.

• **Complete Specification (CS):** Preparation and filing of the Complete Specification within five (5) days of the filing of the Provisional Specification or from the date of receiving all necessary information for the Complete Specification (as applicable).

These timelines are maximum limits (i.e., “not more than” the days specified) and Lextria Research will endeavor to complete the tasks sooner when possible. Please note that timely delivery is contingent upon the Client providing required information and feedback in a prompt manner (see Client Responsibilities below). Any delays in receiving information from the Client may extend the above timelines. Fees and Payment Terms. The fees and payment terms for this engagement are as follows:

• **Professional Fees:** The charges for the services outlined in this engagement will be based on the mutually agreed pricing model. All fees are quoted in Indian Rupees and are exclusive of taxes.

• **Taxes:** Goods and Services Tax (GST) at the applicable rate will be added to all invoices. Each invoice will clearly itemize the fees and the GST amount.

• **Invoicing and Payment Due:** Lextria Research will issue invoices according to the schedule or milestones agreed. All invoice payments are due within fifteen (15) days from the invoice date.

• **Payment Methods:** Payments shall be made via RTGS/NEFT, cheque, or UPI transfer to the designated bank account of Lextria Research (details will be provided on the invoice). All payments should be made in favor of "Lextria Research".

• **Advance Payment:** A 60% advance payment of the total estimated fee is required upon signing this engagement, to cover initial out-of-pocket expenses and commencement of work.This advance will be applied toward the total fees for the project.

• **Remaining Balance:** The remaining 40% balance of the fees shall be payable as perthe mutually agreed payment schedule. Typically, the balance may be paid upon completion of certain milestones (e.g., upon filing of the Provisional Specification and/or Complete Specification) or upon completion of the project, as agreed between the parties.

• **No Late Payment Charges:** No late payment interest or charges will apply in case of a delay in payment beyond the due date. However, the Client is encouraged to adhere to the payment terms to ensure continuous and uninterrupted provision of services.

• **Fee Structure**

Service Description	Estimated Timeline	Fees (INR)
Drafting & Filing of	Within 3 working days	₹ [Insert Amount]
Provisional Specification	Within 5 working days	₹ [Insert Amount]
Professional Consultation	As required	₹ [Insert Amount]
Government Filing Fees (if applicable)	At the time of filing	₹ [Insert Amount]
Other Out-of-Pocket Expenses	As incurred (e.g., courier)	₹ [Insert Amount]
Total Estimated Fees		₹ [Insert Total]

Note: The above fees are exclusive of applicable GST, which will be charged at prevailing rates.

Notes & Clarifications

• Any additional work outside the defined scope (e.g., multiple revisions, claim drafting beyond standard scope, or additional consultations) may be billed separately upon prior agreement.

• Delays in information or document submission from the Client may impact timelines but will not affect the agreed fee structure.

• Government filing fees are subject to change as per official notifications. Lextria Research will inform the Client if any such changes impact the overall fee.

Client Responsibilities

For a smooth and timely execution of the project, the Client shall assume the following responsibilities:

• **Provision of Information**: The Client will provide all necessary documents, technical information, drawings, data, and background details related to the invention required for preparing the patent application. This includes promptly responding to information requests from Lextria Research.

• **Timely Feedback and Communication**: The Client shall review drafts and documents provided by Lextria Research (such as draft specifications or forms) and give prompt feedback or approval. Any delay by the Client in providing requested information, feedback, or approval may impact agreed timelines and deliverables.

• **Accuracy of Information**: The Client is responsible for the accuracy and completeness of all information and materials provided to Lextria Research. Lextria Research will base the patent drafting on the information supplied, and it is understood that the Client has verified all information for correctness. The Client acknowledges that any omissions or inaccuracies in the information provided could affect the quality and effectiveness of the patent application.

• **Cooperation:** The Client will cooperate with Lextria Research in good faith throughout the engagement. This includes being available for discussions or clarification on the invention details and promptly signing any required documents (such as inventor declarations or assignment forms, if applicable).

By fulfilling these responsibilities, the Client will enable Lextria Research to deliver services efficiently and within the specified timeline.

Confidentiality

Confidentiality is a paramount concern in patent matters. Both parties agree to the following confidentiality terms:

• **Non-Disclosure**: Lextria Research and the Client shall each maintain strict confidentiality of all proprietary or sensitive information shared by the other party during the course of this engagement. Confidential information includes, but is not limited to, invention details, technical data, drawings, business information, strategies, pricing, and any other materials marked or understood to be confidential.

• **Use of Information:** The receiving party shall use the confidential information solely for the purposes of this engagement and shall not disclose such information to any third party without the prior written consent of the disclosing party, except as required by law or by a court/authority of competent jurisdiction. If disclosure is required by law, the party required to disclose will, to the extent legally permitted, provide notice to the other party so that measures to protect the information (such as a protective order) can be considered.

• **Survival:** These confidentiality obligations shall survive the completion or termination of this engagement. Both Lextria Research and the Client remain bound to confidentiality even after the patent filing process is concluded or the engagement is terminated, for a period indefinitely, until the confidential information enters the public domain through no fault of the receiving party. Lextria Research may, however, disclose the Client's information to its team members or associates on a need-to-know basis for executing the work, provided those individuals are bound by similar confidentiality obligations.

Limitation of Liability

Lextria Research will perform the services with due care and professionalism. However, in recognition of the uncertainties in legal and technical processes, the parties agree to the following limitations on liability:

• **No Indirect Liability**: In no event shall Lextria Research be liable to the Client for any indirect, incidental, consequential, special, or punitive damages, or for any loss of profit or business opportunities, arising out of or relating to this engagement or the services provided, even if advised of the

possibility of such damages. This includes, for example, any losses arising from delays in filing or issues in the patent process that are beyond Lextria Research's direct control.

• **Liability Cap:** Lextria Research's total cumulative liability for any and all claims, whether in contract, tort (including negligence), or otherwise, arising out of or relating to this engagement shall be limited to the total fees actually paid by the Client to Lextria Research for the services rendered under this engagement letter. This liability cap represents the maximum amount for which Lextria Research can be held liable in aggregate, regardless of the number of claims or the nature of the claim. The Client acknowledges that the fees charged by Lextria Research for this engagement reflect this allocation of risk and the above limitation of liability.

Termination

Either party has the right to terminate this engagement under the conditions outlined below:

• **Termination by Either Party:** Either Lextria Research or the Client may

terminate this engagement at any time by providing at least thirty (30) days' prior written notice to the other party. The notice should be delivered in writing (email or hard copy) and will specify the intended effective date of termination (which shall be at least 30 days from the date of the notice).

• **Payment for Work Done:** In the event of termination by either party, the Client shall be liable to pay Lextria Research for all services rendered and expenses incurred up to the effective date of termination. Lextria Research will provide a statement of work completed and the corresponding fees due

(if any) as of the termination date.

• **Adjustment of Advance Payment:** Any advance payment paid by the Client (such as the 60% advance) will be adjusted against the fees for work completed up to the
termination. This adjustment will be on a pro-rata basis according to the percentage of work completed. For example, if 10% of the total agreed work has been completed at the time of termination, then 10% of the total quoted fee will be deemed earned by Lextria Research. The remaining balance of any advance, after accounting for work completed, will be refunded to the Client within a reasonable period. Similarly, if more work has been completed than covered by the advance, the Client will be
invoiced for the additional amount due.

• **Delivery of Work Product:** Upon termination, Lextria Research will deliver to the Client all completed or in-progress work product (such as draft specifications or filed applications) that has been prepared up to the termination date, provided all due fees for such work have been paid.

• **Continuation of Obligations:** Termination of the engagement shall not affect those provisions which, by their nature, are intended to survive termination (such as confidentiality, limitation of liability, and governing law provisions). Termination of this engagement shall be without prejudice to any rights or remedies that may have accrued to either party prior to termination.

Governing Law and Dispute Resolution

This engagement letter and the services provided herein shall be governed by and construed in accordance with the laws of India, without regard to its conflict of law principles. In the event of any dispute or difference arising out

of or relating to this engagement, the parties shall attempt in good faith to resolve the matter amicably through discussions and negotiations. If an amicable resolution cannot be reached within a reasonable time, the dispute shall be referred to binding arbitration as follows:

• **Arbitration:** The dispute shall be settled by arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996 (and any amendments thereto in force at the time of the dispute). A sole arbitrator shall be appointed by mutual agreement of the parties. If the parties cannot agree on a sole arbitrator, each party shall appoint one arbitrator, and the two appointed arbitrators shall appoint a third arbitrator who will act as the presiding arbitrator of the tribunal.

• **Venue and Seat:** The seat and venue of the arbitration shall be Udupi, Karnataka, India. The arbitration proceedings shall be conducted in the English language.

• **Procedure:** The arbitration shall be conducted in a confidential manner. The arbitrator(s) shall have the authority to order appropriate remedies or relief consistent with the terms of this engagement letter. The award rendered by the arbitrator(s) shall be final and binding on both parties, and judgment on the award may be entered in any court of competent jurisdiction.

• **Costs:** Each party shall initially bear its own costs of arbitration, and the costs of the arbitrator(s) shall be shared equally by the parties, unless the arbitrator decides
otherwise in the award.

• **Court Jurisdiction:** Subject to the above arbitration clause, the courts of Udupi, Karnataka shall have exclusive jurisdiction for the purposes of granting interim reliefor enforcing arbitration awards. By agreeing to these terms, both parties confirm that they will not initiate any litigation in respect of any dispute arising from this engagement, except for the enforcement of arbitral awards or as necessary to seek interim relief, in which case jurisdiction shall lie as specified above.

Amendments

No amendment, modification, or waiver of any provision of this engagement letter shall be valid unless made in writing and signed by authorized representatives of both Lextria Research and the Client. This engagement letter (including Annexure A and any attachments) constitutes the entire agreement between the parties with respect to the subject matter herein and supersedes any prior understandings, proposals, or agreements, oral or written, relating to the same subject matter. Any changes to the scope of work, fees, or other terms must be documented in a written amendment or addendum to this letter, duly acknowledged by both parties.

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Acknowledgment and Acceptance

If the above terms and conditions are acceptable, please indicate your acknowledgment and acceptance by signing in the space provided below. Each party should retain a copy of this signed engagement letter for their records. This letter, once signed by both the Client and an authorized representative of Lextria Research, will constitute a legally binding agreement between us, effective as of the date of the last signature below. We thank you for the opportunity to be of service and look forward to assisting you in the patent filing process. If you have any questions regarding this letter or require any clarification, please do not hesitate to contact us before signing.

For Lextria Research:

Authorized Signatory: [Name of Authorized Person]

Title/Designation: [Title]

Signature: _____ Date: _____

For [Client Name]:

Authorized Signatory: [Name of Client's Authorized Person]

Title/Designation: [Title]

Signature: _____ Date: _____

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